PRESSURE AND SOFT WASHING SERVICES AGREEMENT

Power Clean · State of Florida

THIS PRESSURE AND SOFT WASHING SERVICES AGREEMENT (this "**Agreement**") is made and entered into as of _____ (the "**Effective Date**"), by and between _____, a _____ [*entity type*] organized under the laws of the State of Florida, doing business as Power Clean, having its principal place of business at _____ ("**Contractor**"), and _____, an individual ("**Customer**"). Contractor and Customer are sometimes referred to herein individually as a "**Party**" and collectively as the "**Parties**."

RECITALS

WHEREAS, Contractor is engaged in the business of providing exterior pressure washing, soft washing, and related cleaning services; and

WHEREAS, Customer desires to engage Contractor to perform certain such services at the real property described in Schedule 1, and Contractor desires to perform such services, upon the terms and subject to the conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties, intending to be legally bound, agree as follows:

SCHEDULE 1 — SERVICE PARTICULARS

Property (service address)	
Customer telephone / email	
Contractor telephone / email	
Estimate number / date	
Scheduled service date or window	
Contract Price	$ plus applicable Florida sales tax, if any, as stated in the Estimate
Deposit (if any)	$
Accepted payment methods	

ARTICLE 1. DEFINITIONS

1.1 "**Estimate**" means the written estimate, proposal, or scope of work identified in Schedule 1 and accepted by Customer, together with any Change Order.

1.2 "**Services**" means the exterior cleaning services described in the Estimate, and no others.

1.3 "**Property**" means the real property, and the improvements thereon, located at the service address set forth in Schedule 1.

1.4 "**Change Order**" means any modification of the scope, price, or schedule of the Services approved by Customer in accordance with Section 2.2.

1.5 "**Business Day**" means any day other than a Saturday, Sunday, or legal holiday observed in the State of Florida.

1.6 "**Acknowledgment**" means the Property Condition Disclosure and Acknowledgment of Risk executed by the Parties in connection with this Agreement.

ARTICLE 2. SCOPE OF SERVICES

2.1 Services. Contractor shall furnish all labor, equipment, and materials necessary to perform the Services at the Property in a good and workmanlike manner consistent with generally accepted industry practices. Contractor shall have no obligation to perform any work not expressly described in the Estimate.

2.2 Changes. No additional work, and no change in the scope, price, or schedule of the Services, shall be performed or charged unless approved by Customer in advance. Such approval may be given in writing, including by electronic mail or text message.

ARTICLE 3. CUSTOMER REPRESENTATIONS AND OBLIGATIONS

3.1 Authority. Customer represents and warrants that Customer is the owner of the Property or is otherwise duly authorized to engage Contractor to perform the Services thereon. If Customer is not the owner of record, Customer further represents and warrants that Customer has obtained all consents required from the owner, landlord, or any homeowners' or condominium association.

3.2 Access and Utilities. Customer shall provide Contractor with reasonable access to the Property and the areas to be cleaned. Customer shall also provide an operable water supply and, where agreed, electrical service. Unless the Estimate provides otherwise, Customer shall bear the cost of such water and electricity.

3.3 Preparation. Prior to the commencement of the Services, Customer shall:

(a) close and secure all doors, windows, and vents adjacent to the areas to be cleaned;

(b) secure all pets and children away from the areas in which the Services are performed;

(c) remove or protect fragile, valuable, or moveable personal property located in or near such areas; and

(d) maintain a safe work area, free of known hazards.

3.4 Disclosure. Customer shall disclose to Contractor, before the commencement of the Services and to the best of Customer's knowledge, any of the following affecting the Property:

(a) leaks;

(b) loose fixtures or damaged surfaces;

(c) failing paint or coatings;

(d) exposed wiring;

(e) drainage deficiencies;

(f) sensitive vegetation, ponds, or pools;

(g) any other condition that could reasonably be affected by the Services; and

(h) any manufacturer warranty, association rule, or other restriction known to Customer that limits the methods by which any surface may be cleaned.

ARTICLE 4. METHODS AND MATERIALS

4.1 Methods. Contractor may employ high-pressure washing, low-pressure soft washing, surfactants, detergents, and sodium-hypochlorite-based cleaning solutions, as Contractor reasonably determines to be appropriate for the surfaces described in the Estimate.

4.2 Standard of Care. Contractor shall:

(a) apply all cleaning agents in accordance with the manufacturer's label directions;

(b) take commercially reasonable protective measures, including the pre-wetting and rinsing of landscaping; and

(c) take reasonable measures to contain and manage wash water and runoff in compliance with all applicable federal, state, and local stormwater laws, ordinances, and regulations.

ARTICLE 5. PRE-EXISTING CONDITIONS; NO GUARANTEE OF RESULTS

5.1 Pre-Existing Conditions. Customer acknowledges that cleaning may reveal pre-existing conditions previously concealed by dirt, mildew, algae, or other organic growth, including discoloration, deterioration, cracking, oxidation, worn paint, and damage. Contractor shall not be liable for any condition existing prior to the performance of the Services. This Section 5.1 shall not limit Contractor's responsibility under Article 9 for damage caused by the Services.

5.2 Results. Customer acknowledges that certain stains, rust, oxidation, and embedded discoloration may not be removable, and that organic growth may recur over time. Except as expressly set forth in

the Estimate, Contractor makes no representation or guarantee as to any particular cosmetic or restorative result or as to the duration of any result. Nothing in this Section 5.2 diminishes Contractor's obligation under Section 2.1 to perform in a good and workmanlike manner.

ARTICLE 6. SUSPENSION AND TERMINATION OF WORK

6.1 Right to Suspend. Contractor may suspend or decline to perform any portion of the Services where:

(a) site conditions are unsafe;

(b) access is inadequate;

(c) weather conditions are unsuitable; or

(d) unforeseen conditions present a material risk of damage to persons or property.

Any resulting change to the scope, price, or schedule of the Services shall be effective only upon Customer's approval pursuant to Section 2.2.

6.2 Partial Performance. If the Services are suspended and not completed, Customer shall be obligated to pay only for the Services actually performed, at the rates set forth in the Estimate, prorated where reasonable. Contractor shall promptly refund any portion of a deposit in excess of such amount.

ARTICLE 7. COMPENSATION AND PAYMENT

7.1 Contract Price. In consideration of the Services, Customer shall pay Contractor the Contract Price set forth in Schedule 1 and the Estimate, together with any applicable Florida sales tax and any amounts due under approved Change Orders. No other charge shall be imposed without Customer's prior approval.

7.2 Time of Payment. Payment shall be due on the date specified in the Estimate. If the Estimate specifies no such date, payment shall be due upon completion of the Services.

7.3 Receipts. Contractor shall furnish Customer with an invoice or receipt for every payment received.

ARTICLE 8. CANCELLATION AND RESCHEDULING

8.1 Statutory Right to Cancel. **If this Agreement is executed at Customer's residence, or at any place other than Contractor's fixed place of business, and the Contract Price exceeds twenty-five dollars ($25.00), Customer may cancel this Agreement without penalty or obligation at any time before midnight of the third (3rd) Business Day after the date on which Customer signs it.** This right arises under Sections 501.021 through 501.055, Florida Statutes, and the Federal Trade Commission's Rule Concerning Cooling-Off Period for Sales Made at Homes or at Certain Other Locations, 16 C.F.R. Part 429. In such event:

(a) the notices set forth immediately above the signature lines of this Agreement, and the Notice of Cancellation attached as Exhibit A, are incorporated herein;

(b) Contractor shall furnish Customer with a fully completed copy of this Agreement and two (2) copies of Exhibit A;

(c) Contractor shall refund all payments within ten (10) Business Days after receipt of a valid notice of cancellation; and

(d) Contractor shall not commence the Services before the expiration of the cancellation period, except as permitted by applicable law in the case of a bona fide emergency.

8.2 Rescheduling. Either Party may request that the Services be rescheduled, including on account of inclement weather, and the Parties shall cooperate in good faith to agree on a substitute date.

8.3 Cancellation Charges. No cancellation fee or forfeiture of deposit shall apply unless it is expressly stated in the Estimate. No such charge shall apply to any cancellation made pursuant to Section 8.1.

8.4 Cancellation by Contractor. If Contractor cancels the Services and the Parties do not agree on a substitute date, Contractor shall refund any deposit in full within ten (10) Business Days.

ARTICLE 9. RESPONSIBILITY FOR DAMAGE; CLAIMS

9.1 Responsibility. Contractor shall be responsible, to the extent provided by applicable law, for loss or damage to the Property caused by the negligence, recklessness, or willful misconduct of Contractor or its employees or agents, or by Contractor's breach of this Agreement.

9.2 Notice of Claims. Customer shall notify Contractor of any suspected damage arising from the Services promptly, and preferably within seven (7) days after completion of the Services. Customer shall also provide photographs or other reasonable documentation and afford Contractor a reasonable opportunity to inspect. The foregoing period is requested to permit timely inspection only. It shall not shorten any limitations period prescribed by law, and the failure to give notice within such period shall not, by itself, constitute a waiver of any claim.

9.3 Non-Waivable Rights. Nothing in this Agreement or the Acknowledgment shall be construed to waive, release, or limit any right or remedy that may not lawfully be waived, released, or limited, including rights under the Florida Deceptive and Unfair Trade Practices Act, Part II of Chapter 501, Florida Statutes.

ARTICLE 10. INSURANCE

10.1 Contractor represents that it maintains commercial general liability insurance issued by _____ with limits of not less than $_____ per occurrence. Contractor shall furnish a certificate of insurance upon request.

ARTICLE 11. PHOTOGRAPHS

11.1 Contractor may photograph the areas of the Property in which the Services are performed, for the purpose of documenting conditions before and after the Services.

11.2 Contractor shall not use any photograph depicting the street address, any person, any vehicle license plate, or any other identifying feature of the Property in advertising or promotional materials without Customer's consent. Customer hereby: ☐ consents ☐ does not consent.

ARTICLE 12. GENERAL PROVISIONS

12.1 Independent Contractor. Contractor is an independent contractor. It shall be solely responsible for the supervision, compensation, and conduct of its employees, agents, and subcontractors. Nothing herein shall be construed to create a partnership, joint venture, or employment relationship between the Parties.

12.2 Entire Agreement; Order of Precedence. This Agreement, together with the Estimate, the Acknowledgment, and Exhibit A (if applicable), constitutes the entire agreement of the Parties with respect to its subject matter and supersedes all prior negotiations, representations, and understandings. In the event of any conflict among them:

(a) the Estimate shall control as to scope, price, and schedule; and

(b) this Agreement shall control in all other respects.

12.3 Amendment; Waiver. This Agreement may be amended only by a writing, including an electronic writing, approved by both Parties. No waiver of any provision shall be effective unless given in writing. No waiver shall be deemed a waiver of any other provision or of any subsequent breach.

12.4 Governing Law; Venue. This Agreement shall be governed by and construed in accordance with the laws of the State of Florida, without regard to its conflict-of-laws principles. Venue for any action arising out of or relating to this Agreement shall lie in the state courts of the county in which the Property is located, including the small claims division thereof where jurisdictionally eligible.

12.5 Severability. If any provision of this Agreement is held invalid or unenforceable, such provision shall be enforced to the maximum extent permissible, and the remaining provisions shall continue in full force and effect.

12.6 Notices. Notices hereunder shall be in writing and delivered by hand, by mail, or by electronic mail to the addresses set forth herein or in Schedule 1. This Section 12.6 does not limit any method of cancellation permitted by Section 8.1 or by law.

12.7 Counterparts; Electronic Signatures. This Agreement may be executed in counterparts and by electronic signature. Each counterpart shall be deemed an original, and an electronic signature shall have the same force and effect as a handwritten signature pursuant to the Uniform Electronic Transaction Act, Section 668.50, Florida Statutes.

12.8 Headings. Headings are for convenience only and shall not affect the interpretation of this Agreement.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date. Customer acknowledges having read this Agreement in its entirety, having reviewed the Estimate, and having received a completed copy of each.

[Applicable where Section 8.1 applies.]

YOU, THE BUYER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE OF THIS TRANSACTION. SEE THE ATTACHED NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT.

BUYER'S RIGHT TO CANCEL: This is a home solicitation sale, and if you do not want the goods or services, you may cancel this agreement by providing written notice to the seller in person, by telegram, or by mail. This notice must indicate that you do not want the goods or services and must be delivered or postmarked before midnight of the third business day after you sign this agreement. If you cancel this agreement, the seller may not keep all or part of any cash down payment.

CUSTOMER	**CONTRACTOR**
	_____, d/b/a Power Clean
_____	_____
Signature	By (Signature)
_____	_____
Printed Name	Printed Name and Title
_____	_____
Date	Date

EXHIBIT A

To be furnished in duplicate where Section 8.1 applies

NOTICE OF CANCELLATION

Date of Transaction: _____

You may CANCEL this transaction, without any Penalty or Obligation, within THREE BUSINESS DAYS from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within TEN BUSINESS DAYS following receipt by the seller of your cancellation notice, and any security interest arising out of the transaction will be cancelled.

If you cancel, you must make available to the seller at your residence, in substantially as good condition as when received, any goods delivered to you under this contract or sale, or you may, if you wish, comply with the instructions of the seller regarding the return shipment of the goods at the seller's expense and risk.

If you do make the goods available to the seller and the seller does not pick them up within 20 days of the date of your Notice of Cancellation, you may retain or dispose of the goods without any further obligation. If you fail to make the goods available to the seller, or if you agree to return the goods to the seller and fail to do so, then you remain liable for performance of all obligations under the contract.

To cancel this transaction, mail or deliver a signed and dated copy of this cancellation notice or any other written notice, or send a telegram, to _____, d/b/a Power Clean, at _____, NOT LATER THAN MIDNIGHT OF _____.

I HEREBY CANCEL THIS TRANSACTION.

_____ _____

Date Buyer's Signature